



SPONSOR: Sen. Pettyjohn & Rep. K. Williams  
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Mantzavinos, Pinkney, Poore, Richardson, Wilson; Reps.  
Griffith, Osienski, Ross Levin, D. Short

DELAWARE STATE SENATE  
153rd GENERAL ASSEMBLY

SENATE BILL NO. 143

AN ACT TO AMEND TITLE 12 OF THE DELAWARE CODE RELATING TO FIDUCIARY ACCESS TO DIGITAL ASSETS AND DIGITAL ACCOUNTS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 5005, Title 12 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 5005. Recovery of digital assets and digital accounts from a custodian.

(d)(1) A custodian shall comply with a valid written request ~~not later than~~ within 60 days after ~~receipt of~~ receiving the valid written request. If the custodian fails to comply, the fiduciary may apply to the ~~court~~ Court for an order directing compliance.

(2) If the fiduciary applying for an order under paragraph (d)(1) of this section is a parent or legal guardian of the account holder and the account holder is a deceased minor, the Court shall treat the fiduciary's application as expedited and aim to resolve the application within 30 days after the date the application is filed.

SYNOPSIS

Ohio recently adopted "Braden's Law", named after Braden Markus. Braden, a high school student, tragically took his own life after being coerced into sharing sensitive photographs online and then threatened with release of the photographs on social media if he did not pay money. Braden's parents, Jenn and Jarod, endured months of anguish after being denied access to Braden's personal cell phone records. In response, part of Braden's Law requires courts to adjudicate a parent or legal guardian's request for an order directing access to a deceased minor's digital assets and digital accounts within 30 days.

In Delaware, a fiduciary can access to digital assets and digital accounts under Chapter 50 of Title 12. A fiduciary must send to the custodian of digital assets or digital accounts a valid written request for access. The custodian must comply with the valid written request within 60 days. If the custodian fails to comply, the fiduciary can ask the Court of Chancery (the "Court") for an order directing the custodian to grant access to the digital assets. If the fiduciary seeking access to a digital asset or digital account is a parent or legal guardian of a minor deceased account holder, this Act requires the Court to treat the application as expedited and aim to resolve the application within 30 days after the application is filed.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.

Author: Senator Pettyjohn